

JDF 611



Guide to Sealing Conviction Records

(district or county court case)

participant/case info review zone

Step-by-Step

① Prepare



Complete the following before filing:
(more info on page 2)

- Verify your conviction can be sealed.
- Wait for the time minimum from completing your sentence.
- Get the mailing address for every agency with your records.

② Get a Criminal History Report



Visit [www.cbirecordscheck.com] to get a criminal history report. (possible fees)

Start Step 3 within 20 days of that report.

Check with your local court if it requires an FBI fingerprint-based report.

③ File the Request



File these forms into your criminal case:

- JDF 612 Motion
 - Be sure to list all agency addresses you found in Step 1.
- JDF 613 Order (just do §§ A-C)
- JDF 614 Notice (Just do §§ A-C)
- JDF 615 Order (just do §§ A-C)

Pay or waive the filing fee (if any).

④ Send a Copy



Mail a copy of your motion to the Prosecuting Attorney's office.

⑤ Hearing



The Court may hold a hearing.

Be prepared to show why you qualify to have your case sealed.

⑥ Sealing Records



If the Court approves your request to seal the records:

- The Court will send the order to the agency addresses you listed in the Petition.
- The agencies generally seal your records within 30 days of receiving the order.

More Information

Generic Information

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This guide only has basic information. Consult a lawyer and review the law to see what applies to your case.

Find Forms

Forms can be found on the Court's website:

[\[www.ColoradoJudicial.gov\]](http://www.ColoradoJudicial.gov)

Filing Fees

The Clerk will let you know the fee (if any) when filing.

If you cannot afford the fees, also file:

- JDF 205 Motion to Waive Fees
- JDF 206 Order (Just do §§ A-C)

Qualifying Convictions

Not all convictions can be sealed.

Review the Motion (JDF 612 § 5) for a list of convictions that can't be sealed.

Your case can't be sealed if you still owe restitution.

Wait Times

Eligible convictions can be sealed after a certain period.

Anytime

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- Crimes by victims of human trafficking.
- Charges for psilocybin that are no longer unlawful. See C.R.S. § 18-18-434.

1 Year

- Petty and Petty Drug Offenses.

2 Years

- Class 2 and 3 Misdemeanors
- Any Drug Misdemeanors.
- Level 4 Drug Felonies under C.R.S. § 18-18-403.5(2.5).

3 Years

- Class 1 Misdemeanors
- Class 4, 5, and 6 Felonies.
- Level 3 and most Level 4 Drug Felonies.

More Info:

- Time starts at the end of all criminal proceedings or release from supervision, whichever happens later.
- If your request to seal records is denied, you must wait one year before making another request.

My Notes

- §§ means "sections"
- C.R.S. means Colorado Revised Statutes